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IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

CRWP-43-2025 (O&M)

Date of Decision: January 07, 2025

Harpreet Kaur and another

.....Petitioners

Versus

State of Punjab and others

.....Respondents

CORAM: HON'BLE MR.JUSTICE RAJESH BHARDWAJ

Present: Mr.Deepak Kumar Bartia, Advocate
for the petitioners.

.....

RAJESH BHARDWAJ, J.(ORAL)

1. Present petition has been filed under Article 226 of the Constitution of India for directing respondents No.1 to 3 to protect the life and liberty of the petitioners and not to interfere in their married life at the instance of respondents No.4 to 6 and their other relatives and friends.

2. At the outset it has been submitted by learned counsel for the petitioners that inadvertently in the memo of parties respondent No.2 has been written as Senior Superintendent Moga instead of Senior Superintendent of Police, District Moga and the same may be ordered to be corrected.

3. Prayer of the counsel for the petitioners is allowed. Let respondent No.2 in the memo of parties be read as `Senior Superintendent of Police, Moga` instead of `Senior Superintendent Moga`. Registry is directed to do the needful.

4. Learned counsel for the petitioners states that both the



petitioners are major and have performed marriage against the wishes of respondents No.4 to 6 and have sought protection to their life and liberty. They apprehend danger from respondents No.4 to 6. Their marriage certificate and marriage photographs evidencing their marriage are on record as Annexures P-3 and P-4. The petitioners have submitted a representation, dated 02.01.2025 (Annexure P-5) to respondent No.2.

- 5. Notice of motion to respondents No.1 to 3-State only.
- 6. On asking of the Court, Mr.Tarun Aggarwal, Sr.DAG, Punjab, who is present in Court, accepts notice on behalf of the respondents/State.
- 7. Without entering upon an exercise to evaluate the evidentiary value of the documents placed on the file, I dispose of the petition with a direction to respondent No.2-Senior Superintendent of Police, District Moga, to decide the representation (Annexure P-5) of the petitioners and grant them protection, if any threat to their life and liberty is perceived. It is clarified that this order shall not be taken to grant immunity to the petitioners from legal action for violation of law, if any, committed by them. This order would not be understood having expressed any opinion whatsoever by this Court on the validity of the marriage performed by the petitioners.

January 07, 2025
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(RAJESH BHARDWAJ)
JUDGE

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| 1. Whether speaking/reasoned ? | Yes/No |
| 2. Whether reportable ? | Yes/No |